



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Senior Planner
Subject: PLTA-25-7 – Amending UDC 4.2 Park Fees
Date: May 27, 2025

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.
The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/27/2025
- Public Services Committee 6/2/2025
- Second reading 6/9/2025
- Public Services Committee 6/16/2025
- Third and final reading 6/23/2025

Planning Commission Recommendation:

The Planning Commission heard this item at their May 19, 2025, meeting and voted 5-1 to recommend the Governing Body approve the proposed text amendment with the following changes:

- 4.2.5.b to read as follows (prior to Table 4-1):
 "Park and Recreation Fee Calculation. The required fee shall be calculated as follows for lands being developed **or redeveloped on or after July 1, 2025 after adoption of these regulations:**
 (black text is originally proposed UDC amendment language)
- 4.2.5.c.1 to read as follows:
 "Lands developed for governmental recreational use (including ... schools with play areas or fields that are open and publicly accessible during non-school hours ...)"
 (black text is originally proposed UDC amendment language)
- 4.2.5.e – Table 4-2, Column 2 to read as follows:
 "Payable at the issuance of a building permit. If a property is being developed for a use which does not require a permit, fees are due upon the issuance of a site plan approval."
 (black text is originally proposed UDC amendment language)

Planning Commission's proposed changes are reflected in the attached ordinance.

The Planning Commission Staff report is attached and has not been changed (Except that areas changed by the Planning Commission have been noted in green to attempt to reduce confusion when comparing the Planning Commission Staff Report to the Ordinance).

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING PORTIONS OF THE UNIFIED DEVELOPMENT CODE, MODIFYING PROVISIONS RELATED TO PARK IMPACT FEES, INCLUDING THE TIMING OF FEE PAYMENT AND PERMITTED USES OF SUCH FEES, AND MAKING CONFORMING AMENDMENTS THERETO."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on May 19, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 4.2.5, Park Fees, of Chapter 4.2, Community Facilities and Fees, of Article 4, Subdivision Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

4.2.5 Park and Recreation Fees

- a. **Establishment.** Development in the City requires the assessment of park and recreation development impact fees. The assessment of fees is made in association with new development and redevelopment.
- b. **Park and Recreation Fee Calculation.** The required fee shall be calculated as follows for lands being developed or redeveloped on or after July 1, 2025:

TABLE 4-1: PARK AND RECREATION FEES	
<i>Land Acquisition Fee*</i>	• \$350.00 per acre (pro-rated to the nearest one-tenth of an acre) • Minimum fee \$125.00
<i>Infrastructure Fee*</i>	• \$350.00 per acre (pro-rated to the nearest one-tenth of an acre) • Minimum fee \$125.00
<i>Enhancement Fee, Residential*</i>	• \$400.00 per dwelling unit**
<i>Enhancement Fee, Non-residential*</i>	• \$1,100.00 per acre (pro-rated to the nearest one-tenth of an acre) • Minimum fee \$250.00

* To be paid into the Park and Recreation Impact Fee account to be used for park land acquisition, base infrastructure, and/or enhancements to new or existing parks or recreational facilities on City of Cheyenne owned properties.

****** For the purposes of this section, dwelling unit shall be defined by the applicable adopted version of the International Building Code and International Residential Code, and exclude hospitals, nursing homes, and correctional facilities.

- c. **Exemptions.** The following developments are exempt from the Park and Recreation Fees in Table 4-1:
1. Lands developed for governmental recreational use (including parks, greenways, and schools with play areas or fields that are open and publicly accessible during non-school hours, etc.)
 2. Lands developed for public rights-of-way (including streets, roads, alleys, trails, etc.)
 3. Lands developed for public utility (including drainage facilities, channels, detention areas, etc.)
 4. Lands developed for the purposes of meeting any Civic Open Space requirements in Section 4.4.
 5. Property that is developed for residential or agricultural use in the AG, AR, and RR zones.
 6. Where land is being redeveloped, it shall be exempt if the developer or builder can provide evidence that the proposed redevelopment:
 - (a) Consists of a development of equal or lesser intensity of the previous use; or
 - (b) Results in no additional dwelling units.

All other redeveloping land shall be subject to the fees in Table 4-1, except any fee previously paid may be credited to the amount required by Table 4-1. To receive the credit, it shall be the responsibility of the builder or developer to provide evidence of previous fee payment.

- d. **Limitations of Fee Use.** The Land Acquisition Fee, Infrastructure Fee, and Enhancement Fee shall not be used for the following:
1. Routine maintenance of public parks.
 2. Overhead or general fund purposes.
- e. **Payment Schedule.** Fees shall be payable according to the following schedules.

TABLE 4-2: PAYMENT SCHEDULES	
Land Acquisition Fee; Infrastructure Fee; and Enhancement Fee	Payable at the issuance of a building permit. If a property is being developed for a use that does not require a permit, fees are due upon the issuance of a site plan approval.

- f. **Annual Reporting.** The City shall provide a summary report annually detailing collection, expenses, and account balances related to Park and Recreation Fees.

Section 4. That in accordance with the changes made by Section 3 of this Ordinance, the City Treasurer is directed to create the “Park and Recreation Impact Fee” account.

Section 5. That all unencumbered funds in the Park Acquisition and Infrastructure (PAI) and Park Enhancement Account (PEA) accounts are to be transferred to the “Park and Recreation Impact Fee” account as created by this Ordinance.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published:_____
Wyoming Tribune-Eagle

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING PORTIONS OF THE UNIFIED DEVELOPMENT CODE, MODIFYING PROVISIONS RELATED TO PARK IMPACT FEES, INCLUDING THE TIMING OF FEE PAYMENT AND PERMITTED USES OF SUCH FEES, AND MAKING CONFORMING AMENDMENTS THERETO."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on May 19, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 4.2.5, Park Fees, of Chapter 4.2, Community Facilities and Fees, of Article 4, Subdivision Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

4.2.5 Park and Recreation Fees

- a. **Establishment.** ~~Platting-Development~~ in the City requires the assessment of park and recreation development impact fees. ~~The fees are considered an impact fee for development. The assessment of fees is made in association with new development and redevelopment. an approved Final Plat. Fees listed apply to either first time plats or replats, but fees shall not be duplicated for the same parcel. A development agreement or other mechanism may be used to clarify reimbursement of fees.~~
- b. **Plat-Park and Recreation Fee Calculation.** The required fee shall be calculated as follows for lands being ~~platted, replatted or any land being annexed that was platted in the County after adoption of these regulations~~ developed or redeveloped on or after July 1, 2025:

TABLE 4-1: PARK <u>AND RECREATION</u> FEES	
<i>Land Acquisition Fee*</i>	• \$350.00 per acre (pro-rated to the nearest one-tenth of an acre) • Minimum fee \$125.00
<i>Infrastructure Fee*</i>	• \$350.00 per acre (pro-rated to the nearest one-tenth of an acre) • Minimum fee \$125.00
<i>Enhancement Fee, Residential**±</i>	• \$400.00 per dwelling unit**±
<i>Enhancement Fee, Non-residential**±</i>	• \$1,100.00 per acre (pro-rated to the nearest one-tenth of an acre) • Minimum fee \$250.00

* To be paid into the Park ~~Acquisition and Infrastructure (PAI), and Recreation Impact Fee account~~ to be used for park land acquisition, ~~and/or~~ base infrastructure, ~~supporting the service area.~~

~~** To be paid into the Park Enhancement Account (PEA), to be used for and/or~~ enhancements to new or existing parks ~~supporting the service area.~~ or recreational facilities on City of Cheyenne owned properties.

~~***~~ For the purposes of this section, dwelling unit shall be defined by the applicable adopted version of the International Building Code and International Residential Code, and exclude hospitals, ~~and~~ nursing homes, and correctional facilities.

c. **Exemptions.** The following ~~lands-developments~~ are exempt from the Park and Recreation Fees in Table 4-1:

1. Lands ~~platted-developed~~ for governmental recreational use (including ~~schools,~~ parks, greenways, ~~, offices, and schools with play areas or fields that are open and publicly accessible during non-school hours,~~ etc.)
2. Lands ~~dedicated-developed~~ for public rights-of-way (including streets, roads, alleys, trails, etc.)
3. Lands ~~dedicated-developed~~ for public utility (including drainage facilities, channels, detention areas, etc.)
4. Lands ~~platted as un-developable parcels-developed~~ for the purposes of meeting any Civic Open Space requirements in Section 4.4.
5. Property that ~~remains zoned-is developed for residential or agricultural use in the~~ AG, AR, and RR ~~shall not be assessed a fee until rezoned.~~ zones.
6. Where land is being ~~replatted, redeveloped,~~ it shall be exempt if the developer or builder can provide evidence that the proposed redevelopment:
 - (a) ~~The replat consists only of reconfiguring or eliminating interior lot lines with no additional land or building area added to the development;~~ Consists of a development of equal or lesser intensity of the previous use; or
 - (b) ~~The replat results-~~ Results in no additional dwelling units, ~~residential units, non-residential units or lots, and therefore causes no greater impact on public park facilities than the original plat; and~~
 - (c) ~~The replat results in no change in zoning, density, or intensity of use than the original plat.~~

~~7. Lands platted as remainder lot(s) created in accordance with Chapter 2.1 of this code.~~

All other ~~replatted-redeveloping~~ land shall be subject to the fees in Table 4-1, except any fee previously paid ~~at the initial plat~~ may be credited to the amount required by Table 4-1. To receive the credit, it shall be the responsibility of the builder or developer to provide evidence of previous fee payment.

d. **Limitations of Fee Use.** The Land Acquisition Fee, Infrastructure Fee, and Enhancement Fee shall not be used for the following:

1. Routine maintenance of public parks.
2. Overhead or general fund purposes.

e. **Payment Schedule.** Fees shall be payable according to the following schedules.

TABLE 4-2: PAYMENT SCHEDULES	
Land Acquisition Fee; Infrastructure Fee; and	Payable in full at the time of the signing of the plat if the total fee is less than \$5,000.00. If the total fee is greater than \$5,000.00, 10% of the total fee shall be paid at the time of the signing of the plat along with a contractual agreement between the City and the Applicant outlining a payment schedule for the remaining balance. The contractual agreement shall be executed with the plat signing.
Land Acquisition Fee; Infrastructure Fee; and Enhancement Fee	Payable at the issuance of a building permit. <u>If a property is being developed for a use that does not require a permit, fees are due upon the issuance of a site plan approval.</u>

~~Any land platted after adoption of these regulations but prior to annexation, shall be subject to the applicable Land Acquisition Fee, Infrastructure Fee and Enhancement Fee at the time of annexation or at the issuance of a building permit as provided in Table 4-2.~~

- f. ~~Public Annual Reporting and Accountability.~~ The City shall ~~each year report the source and disbursement of the fees as follows:~~ provide a summary report annually detailing collection, expenses, and account balances related to Park and Recreation Fees.
- ~~1. At the third regularly scheduled City Council meeting after the end of each fiscal year, a written report shall be presented to the City Council on the fees with the following information:~~
 - ~~(a) Source of all fees by person, subdivision/development name and amount collected;~~
 - ~~(b) Disbursement of any fees to whom and by project or item(s) and the amount of purchase; and~~
 - ~~(c) Balance in the fee accounts as of June 30th of each year.~~
 - ~~2. The Treasurer of the City shall maintain a specific account for all fees independent from all other general fund accounts of the City. This account shall be represented and budgeted in the annual budget reporting of the City.~~

Section 4. That in accordance with the changes made by Section 3 of this Ordinance, the City Treasurer is directed to create the “Park and Recreation Impact Fee” account.

Section 5. That all unencumbered funds in the Park Acquisition and Infrastructure (PAI) and Park Enhancement Account (PEA) accounts are to be transferred to the “Park and Recreation Impact Fee” account as created by this Ordinance.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

MAY 19, 2025

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code 4.2.5 Park Fees, to change collection timing and fee accounts.

CASE NUMBER: PLTA-25-7

PREPARED BY: Seth Lloyd, AICP, Senior Planner, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code 4.2.5 Park Fees as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

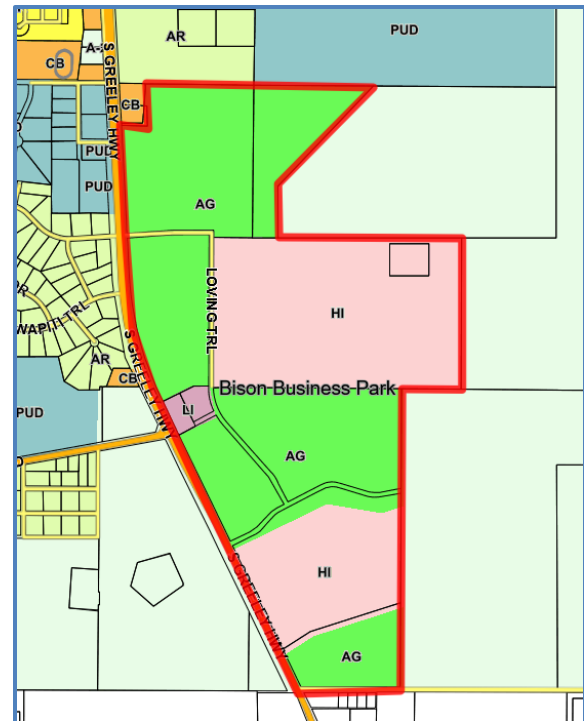
BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendments are to the Park Impact Fees section of code. Currently, Park Impact Fees are charged at time of subdivision and at time of permit. There are three fees charged: the Land Acquisition Fee, the Infrastructure Fee, and the Enhancement Fee. The first two fees go into one account (Park Acquisition and Infrastructure) and the enhancement fee goes into a separate account (Park Enhancement Account). The accounts are earmarked for specific purposes – the Park Acquisition and Infrastructure requires fees to be used to acquire land or prepare land for use (such as grading, utilities, etc.); while the Park Enhancement Account is reserved for the creation of amenities (playgrounds, ball fields, etc.).

The current arrangement of Park Fees creates challenges for both developers and Staff.

For developers, Park Fees being due at time of subdivision leads to various landowners not being willing to plat all of their land, or to not request zoning of all of their land to the zone they intend it to be under eventually. This is because agricultural land and remainder lots are exempt from Park Fees, and not all developers can afford to pay Park Fees up front without a specific project in process. The most prominent example is Bison Business Park, which, although originally intended to be a business park with HI or LI zoning, contains multiple unplatted or AG zoned parcels. Because parcels are unplatted or zoned with agricultural zoning, any business coming in would need to go through a time-consuming process to get the land ready for development (zone change and/or platting actions add at least 3 months to a project).



Bison Business Park – Current Zoning

For Staff, the limitations on the different Park Fee accounts has meant some accounts grow while City recreation needs go unmet. The account which is limited to park land acquisition or park land infrastructure improvements is limited such that it cannot be used for indoor recreation (such as an indoor soccer facility) or for park enhancements (such as parking, playgrounds, ballfields, or trees).

This amendment proposes changing the timing of collection of fees to the time of building permit, proposes changing “Park Fees” to “Park and Recreation Fees”, and proposes putting all fees into one account to be used wherever the City needs to improve its recreation offerings to service a growing population.

This proposed amendment does not propose changing the fees’ dollar amount or how the fees are calculated.

PROPOSED AMENDMENTS:

Amend UDC Section 4.2.5 Park Fees:

4.2.5 Park and Recreation Fees

a. Establishment. Platting-Development in the City requires the assessment of park and recreation development impact fees. ~~The fees are considered an impact fee for development. The assessment of fees is made in association with new development and redevelopment. an approved Final Plat. Fees listed apply to either first time plats or replats, but fees shall not be duplicated for the same parcel. A development agreement or other mechanism may be used to clarify reimbursement of fees.~~

b. Plat FeePark and Recreation Fee Calculation. The required fee shall be calculated as follows for lands being platted, replatted or any land being annexed that was platted in the County developed after adoption of these regulations:

Changed by Planning Commission

Table 4-1: Park <u>and Recreation</u> Fees	
Land Acquisition Fee*	• \$350.00 per acre (pro-rated to the nearest one-tenth of an acre) • Minimum fee \$125.00
Infrastructure Fee*	• \$350.00 per acre (pro-rated to the nearest one-tenth of an acre) • Minimum fee \$125.00
Enhancement Fee, Residential**	• \$400.00 per dwelling unit***
Enhancement Fee, Non-residential**	• \$1,100.00 per acre (pro-rated to the nearest one-tenth of an acre) • Minimum fee \$250.00

* To be paid into the Park and Recreation Impact Fee Account ~~Park Acquisition and Infrastructure (PAI)~~, to be used for park land acquisition, ~~and/or~~ base infrastructure supporting the service area.

** ~~To be paid into the Park Enhancement Account (PEA), to be used for~~ and/or enhancements to new or existing parks or recreational facilities on City of Cheyenne owned property supporting the service area.

*** For the purposes of this section dwelling unit shall be defined by the applicable adopted version of the International Building Code and International Residential Code, and exclude hospitals, ~~and~~ nursing homes, and correctional facilities.

c. Exemptions. The following ~~lands-developments~~ are exempt from the Park and Recreation Fees in Table 4-1:

1. Lands ~~platted-developed~~ for governmental recreational use (including schools, parks, greenways, ~~offices~~, etc.)
2. Lands ~~dedicated-developed~~ for public rights-of-way (including trails, etc.)
3. Lands ~~dedicated-developed~~ for public utility (including drainage facilities, channels, detention areas, etc.)
4. Lands ~~platted-developed as un-developable parcels~~ for the purposes of meeting any Civic Open Space requirements in Section 4.4.
5. Property that remains ~~zoned-developed for residential or agricultural use in the~~ AG, AR, and RR ~~zones shall not be assessed a fee until rezoned.~~
6. Where land is being ~~replatted-redeveloped~~, it shall be exempt if the developer or builder can provide evidence the proposed redevelopment:
 - (a) ~~The replat~~ consists of a development of equal or lesser intensity of the previous use; only of reconfiguring or eliminating interior lot lines with no additional land or building area added to the development;
 - (b) ~~The replat~~ results in no additional dwelling units, ~~residential units, non-residential units or lots, and therefore causes no greater impact on public park facilities than the original plat; and~~
 - (c) ~~The replat~~ results in no change in zoning, density, or intensity of use than the original plat.

~~7. Lands platted as remainder lot(s) created in accordance with Chapter 2.1 of this code.~~

All other ~~replatted-redeveloping~~ land shall be subject to the fees in Table 4-1, except any fee previously paid at the initial plat may be credited to the amount required by

(including schools, parks, greenways, ~~offices~~, etc.)
'Schools' changed by Planning Commission

Table 4-1. To receive the credit, it shall be the responsibility of the builder or developer to provide evidence of previous fee payment.

- d. Limitations of Fee Use. The Land Acquisition Fee, Infrastructure Fee, and Enhancement Fee shall not be used for the following:
1. Routine maintenance of public parks.
 2. Overhead or general fund purposes.
- e. Payment Schedule. Fees shall be payable according to the following schedules.

Table 4-2: Payment Schedules	
Land Acquisition Fee; Infrastructure Fee; and	Payable in full at the time of the signing of the plat if the total fee is less than \$5,000.00. If the total fee is greater than \$5,000.00, 10% of the total fee shall be paid at the time of the signing of the plat along with a contractual agreement between the City and the Applicant outlining a payment schedule for the remaining balance. The contractual agreement shall be executed with the plat signing.
Land Acquisition Fee; Infrastructure Fee; and Enhancement Fee	Payable at the issuance of a building permit. Changed by Planning Commission

~~Any land platted after adoption of these regulations but prior to annexation, shall be subject to the applicable Land Acquisition Fee, Infrastructure Fee and Enhancement Fee at the time of annexation or at the issuance of a building permit as provided in Table 4-2.~~

- f. ~~Public Annual Reporting and Accountability.~~ The City shall provide a summary report annually detailing collection, expenses, and account balances related to Park and Recreation Fees. ~~each year report the source and disbursement of the fees as follows:~~
- ~~1. At the third regularly scheduled City Council meeting after the end of each fiscal year, a written report shall be presented to the City Council on the fees with the following information:~~
 - ~~(a) Source of all fees by person, subdivision/development name and amount collected;~~
 - ~~(b) Disbursement of any fees to whom and by project or item(s) and the amount of purchase; and~~
 - ~~(c) Balance in the fee accounts as of June 30th of each year.~~
 - ~~2. The Treasurer of the City shall maintain a specific account for all fees independent from all other general fund accounts of the City. This account shall be represented and budgeted in the annual budget reporting of the City.~~

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

PlanCheyenne encourages the local governments to “work with local and regional economic development, educational, and business partners to position the Cheyenne Area as a leading place to live and do business in the Northern Front Range region.” (Policy 1.5.A) This amendment is based off of collaboration with business parks to increase the ability of the region to respond to incoming business opportunities.

PlanCheyenne also encourages the region to provide “quality of life amenities that are competitive with those of other communities in the Northern Front Range region” – including parks and recreation facilities (Policy 1.5.C). This amendment allows the City more flexibility in using recreational impact fees to provide the amenities and facilities needed by the community. Similarly, Policies 6.5.A encourages centrally located recreation facilities that can serve large numbers of people.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-103(a)

The governing bodies of all cities and towns may:

...

(xi) Take all necessary action to plan, construct or otherwise improve, modify, repair, maintain and regulate the use of streets, including the regulation of any structures thereunder, alleys, any bridges, parks, public grounds, cemeteries and sidewalks;

...

(xxii) Establish and regulate parks, zoological gardens and recreation areas within the city limits...

Assessment: This amendment proposes taking action to establish and improve park and recreation areas.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

“The amendment promotes the general health, safety and public welfare.”

This amendment allows for better timing and usage of park and recreation impact fees. Providing appropriate recreational facilities is a key part of the public welfare for the Cheyenne area.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code 4.2.5 Park Fees as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.
